

The Merchant Shipping (Safety Convention Certificates) Rules, 1968

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Union of India - Act

The Merchant Shipping (Safety Convention Certificates) Rules, 1968

UNION OF INDIA

India

The Merchant Shipping (Safety Convention Certificates) Rules, 1968

Rule THE-MERCHANT-SHIPING-SAFETY-CONVENTION-CERTIFICATES-RULES-1968 of 1968

Published on 11 April 1968

Commenced on 11 April 1968

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The Merchant Shipping (Safety Convention Certificates) Rules, 1968

1791.

G.S.R. 814, dated 11th April, 1968.[***]

[Substituted by G.S.R. 382, dated 1st March, 1978]

- In exercise of the powers conferred by sub-section (2) of section 7, clause (d) of sub-section (2) of section 299B., section 344 and clause (d) and (o) of sub-section (2) of section 344 I of the Merchant Shipping Act. 1958 (44 of 1958), and in supersession of the Merchant Shipping (Safety Convention Certificates) Rules, 1954, the Central Government hereby makes the following rules, the same having been previously published as required by the said sections 299B and 344, namely :-

1.

Short title and commencement.

(1)
These rules may be called the Merchant Shipping (Safety Convention Certificates) Rules, 1968.

(2)
They shall come into force at once.

2.
Definitions.

- In these rules, unless the context otherwise requires -

(a)
"Act" means the Merchant Shipping Act, 1958 (44 of 1958

);

(b)
"Principal Officer" means the principal officer of the Mercantile Marine Department of the district concerned or in his absence, the surveyor who carries out his duties;

(c)
"Schedule" means a Schedule appended to these rules.

3.
Application for certificates.

- Every application for the grant of a certificate referred to in sub-sections (1), (2) and (2A) of section 307 and sub-section (1) of section 344B of the Act shall be made by the owner, his agent or master of the ship to the principal officer at least three days before the commencement of survey and shall be accompanied by the appropriate amount of fees as specified in items I to IX of the First Schedule.

4.
Inspection by surveyor.

- On receipt of an application under rule 3, the principal officer shall depute a surveyor or surveyors, a radio inspector or a person appointed under sub-section (1) of section 344B, as the case may be, for the inspection of the ship, who shall, after inspection, submit a report to the principal officer:

Provided that where the owner, his agent or master desires such inspection to be made on a Sunday or other holiday or between the hours of 5 p.m. and 7 a.m. he shall be liable to pay additional fees as specified in items X and XI of the First Schedule.

5.
[Forms of certificate.

[Substituted by G.S.R. 382, dated 1st March, 1978]

(1)
Nuclear passenger ship safety certificate, nuclear cargo ship safety certificate, passenger ship safety certificate, cargo ship safety construction certificate, cargo ship safety equipment certificate, cargo ship safety radiotelegraphy certificate, cargo ship safety radiotelephony certificate and exemption certificate shall be granted in duplicate in the appropriate form set out in the Second Schedule.

(2)
Qualified passenger ship safety certificate, qualified cargo ship safety construction certificate and qualified cargo ship safety equipment certificate shall be in one of the appropriate forms referred to in sub-rule (1) with such modifications as may be necessary to show in what respects the ship, in respect of which the certificate is issued, complies with the requirements of the International Convention for the Safety of Life at Sea, signed in London on the 17th day of June, 1960, and in the case of passenger Ship, also of the Simla Rules, 1931, as they apply to unberthed passenger ships.]

6.
Certificates to be affixed in conspicuous part of ships.

- The owner or master of every ship for which a certificate has been granted under these rules shall forthwith, on receipt of the certificates, cause one of the duplicates thereof to be affixed and kept affixed so long as the certificate remains in force and the ship is in use on some conspicuous part of the ship where it may be easily read by all persons on board thereof.

7.

Cancellation, suspension or withdrawal of certificate.

(1)

Any certificate granted under these rules may be cancelled, suspended or withdrawn by the Director-General of Shipping or any other officer authorized by him in this behalf, if he has reason to believe-

(a)

that the declaration regarding the sufficiency of hull boilers, engines or any of the equipment of the ship has been fraudulently or erroneously made; or

(b)

that the certificate has been otherwise issued upon false or erroneous information.

(2)

Before any certificate is cancelled, suspended or withdrawn under sub-rule 91), the holder thereof shall be given a reasonable opportunity of showing cause why the certificate should not be cancelled, suspended or withdrawn as the case may be :

Provided that this sub-rule shall not apply where the Director-General of Shipping is satisfied that for some reason, which shall be recorded in writing, it is not reasonable practicable to give to the holder of the certificate an opportunity of showing cause.

8.

Alteration in ships subsequent to grant of certificates.

(1)

The owner, his agent or master of a ship in respect of which a certificate granted under these rules is in force, shall as soon as possible after any alteration is made in the ship's hull, equipment or machinery which affects the efficiency thereof or the sea worthiness of the ship, give written notice containing full particulars of the alteration to the principal officer.

(2)

If the principal officer has reason to believe that since the survey of a ship for the purpose of issue of any certificate under these rules:-

(a)

any such alteration as aforesaid has been made in the hull, equipment or machinery of the ship; or

(b)

the hull, equipment or machinery of the ship has sustained any injury or is otherwise insufficient, the principal officer may require the ship to be surveyed again to such extent as he may think fit, and if such requirement is not complied with, he may cancel, suspend or withdraw the certificate issued under these rules in respect of the said ship.

9.

Delivery of certificate whose period has expired or which has been cancelled, suspended or withdrawn.

- Every certificate granted under these rules, whose period has expired or which has been cancelled or suspended, or withdrawn shall be delivered to the principal officer.

10.

Savings.

- Nothing in these rules shall apply to the survey of cargo ships carried out by a person or body of persons in pursuance of persons in pursuance of sub-section (1A) of section 9 of the Act.

First Schedule

[See Rule 3]

The fees for certificates shall be as follows :-

I.

For a passenger ship safety or a qualified passenger ship safety certificate

Rs.

120.00

II.

For a cargo ship safety radiotelegraphy or a cargo ship safety radiotelephony

(IA)

For a special trade passenger ship safety certificate

Rs.

120.00

(IB)

For a special trade passenger ship space certificate

Rs.

120.00

III.

For a cargo ships safety equipment certificate or a qualified

(i)

for ships not exceeding 1600 tons gross

(ii)

for ships exceeding 1600 tons gross but not exceeding 3000 tons gross

(iii)

for ships exceeding 3000 tons gross

Rs.

150.00

Rs.

200.00

Rs.

300.00

IV.

For a cargo ship safety construction certificate of a qualified cargo ship safety construction certificate.

Rs.

120.00

V.

For a nuclear passenger ship safety certificate

Rs.

120.00

VI.

For a nuclear cargo ship safety certificate

Rs.

120.00

VII.

For an exemption certificate

Rs.

32.00

VIII.

For each additional copy of any certificate

Rs.

20.00

IX.

For extension of -

(a)

Cargo ship safety radiotelegraphy or cargo ship safety Radiotelephony certificate

(b)

Certificate not covered by clause (a) above

Rs.

300.00

Half

the fee prescribed for issue of the original certificate

X. Holiday Fees. - In addition to the fees payable as prescribed above a fee of Rs. 60 shall be payable along with every application for inspection which the applicant desires to be made on a Sunday or any day which is observed as a holiday by the office of the Mercantile Marine Department in the district concerned.

XI. Overtime fees. - Overtime fees shall be charged as follows :

(a)

Where, at the request of the owner, his agent or master of a ship, a surveyor or a radio inspector or other officer undertakes inspection of the ship after 5 P.M. and before 7 A.M., an additional fee of Rs. Shall be charged;

(b)

Where a surveyor, or radio inspector or other officer is detained at the request for the owner, his agent or master after 5 P.M. to complete an inspection undertaken between the hours of 7 A.M. and 5 P.M., an additional fee of Rs. 25 if the surveyor, radio inspector or other is released from duty before 6 P.M., and of Rs. 50 if he is detained later than 6 P.M. shall be charged;

(c)

Where owner, his agent or master has asked for inspection between the hours of 7 A.M. and 5 P.M. but the official arrangements have not allowed of the work being done between those hours, no additional fee shall be chargeable.

In every case falling under clause (a) or clause (b), the owner, his agent or master shall give in information in writing to the principal officer stating the hours during which the surveyor, radio inspector or other officer was in attendance.

Second Schedule

(See Rule 5 (I))

Nuclear Cargo Ship Safety Certificate

Issued under the provisions of the International convention for the safety of life at sea, 1960

Name

of Ship

Distinctive

Number or letters

Port

of Registry

Gross

Tonnage

Date

on which level was laid

(see

note below)

This is to Certify ---

I. That the above mentioned ship has been duly surveyed in accordance with the provisions of the Convention referred to above.

II. That the ship, being a nuclear ship, complied with all requirements of Chapter VIII of the Convention and conformed to the Safety Assessment approved for the ship.

III. That the survey showed that the ship satisfied the requirements set out in Regulation 10 of Chapter I of the Convention as to hull, machinery and equipment, and complied with the relevant requirements of Chapter II.

IV. That the life-saving appliances provide for a total number of persons and no more, viz:

.....lifeboats on port side capable of accommodating..... Person

.....lifeboats on starboard side capable of accommodating..... person

.....Motor lifeboats (included in the total lifeboats shown above), including "motor life boats fitted with radiotelegraph instructional and searchlight and motor lifeboats fitted with searchlight only;

..... life rafts, for which approved launching devices are required, capable of accommodating Persons; and

..... life rafts for which approved launching devices are required, capable of accommodating.....persons;
.....life buoys;
.....life jackets.

V. That the lifeboats and liferafts were equipped in accordance with the provisions of the Regulations annexed to the Convention.

VI. That the ship was provided with a line-throwing apparatus and portable radio apparatus for survival craft in accordance with the provisions of the Regulations.

VII. That the ship complied with the requirements of the Regulations as regards radiotelegraph installations, viz.-

Requirement

of Regulations

Actual

provision

Hours

of listening by operator

?

?

Number

of operators

?

?

Whether

auto alarm fitted

?

?

Whether

main installation fitted

?

?

Whether

reserve installation fitted

?

?

Whether

main and reserve transmitters

?

?

Electrically

separated or combined

?

?

Whether

direction-finder fitted

?

?

VIII. That the functioning of the radiotelegraph installations for motor lifeboats and/or the portable radio apparatus for survival craft, if provided complied with the provisions of the Regulations.

IX. That the inspection showed that the ship complied with the requirements of the said convention as regards fire-extinguishing appliances and was provided with navigation lights and shapes, pilot ladder, and means of making sound signals and distress signals in accordance with the provisions of the Regulations and the International Collision Regulations.

X. That in all other respects the ship complied with the requirements of the Regulations so far as these requirements

apply thereto.

This certificate is issued under the authority of the Indian Government will remain in force, unless previously cancelled, until ----

Issued at the day of 19.....

The undersigned declares that he is duly authorized by the Indian Government to issue this certificate.

Note. - It will be sufficient to indicate the year in which the keel was laid except for 1952 and for 1965, the year of the coming into force of the International Convention for the Safety of Life at Sea, 1960, in which cases the actual date should be given.

Nuclear Passenger Ship Safety Certificate

Issued under the provision of the International convention for the safety of life at sea, 1960

Name

of Ship

Distinctive

No. or letters

Port

of Registry

Gross

Tonnage

Particulars

of voyage if any, sanctioned under Regulation (27)(C)(vi) of Chapter III

Date

on which keel was laid see note below

This is to Certify ---

I. That the above mentioned ship has been duly surveyed in accordance with the provisions of the Convention referred to above.

II. That the ship, being a nuclear ship, complied with all requirements of Chapter VIII of the Convention and conformed to the Safety Assessment approved for the ship.

III. That the survey showed that the ship complied with the requirements of the Regulations annexed to the said Convention as regards :-

(i)
the structure, main and auxiliary boilers and other pressure vessels and machinery;

(ii)
the watertight sub-division arrangements and details;

(iii)
the following sub-division load-lines :

Sub-division load

lines assigned and marked on the ship's side at amid ships

(Regulation II of Chapter II)

Free Board to

apply when the spaces in which passengers are carried include the following alternative spaces.

C.

1

C.

2

C. 3

IV. That the life saving appliances provided for a total number ofpersons and no more, viz..... Lifeboats (including motor lifeboats) capable of accommodatingpersons, and motor lifeboats fitted with radiotelegraph installation and searchlight (included in the total lifeboats shown above) and motor lifeboats fitted with searchlight only (also included in the total lifeboats shown above) requiringcertificated lifeboatmen;

.....liferrafts, for which approved launching devices are required, capable of accommodating persons; and
.....liferrafts, for which approved launching devices are not required, capable of accommodating Persons;
.....lifebuoys;
.....lifejackets.

V. That the life boats and liferafts were equipped in accordance with the provisions of the Regulations.

VI. That the ship was provided with a line-throwing appliance and portable radio apparatus for survival craft, in accordance with the provisions of the Regulations.

VII. That the ship complied with the requirements of the Regulations as regards radiotelegraph installation, viz. :-

Requirements

of Regulation

Actual

provision

Hours

of listening by operator

?

?

Number

of operators

?

?

Whether

auto alarm fitted

?

?

Whether

main installation fitted

?

?

Whether

reserve installations fitted

?

?

Whether

main and reserve transmitters

?

?

Electrically

separated or combined

?

?

Whether

direction-finder fitted

?

?

Number

of passengers for which certificated

?

?

VIII. That the functioning of the radiotelegraph installation of motor lifeboats and/or the portable radio apparatus of survival craft, if provided, complied with the provisions of the Regulations.

IX. That the ship complied with the requirements of the Regulations regards fire-detecting and fire-extinguishing

appliances and was provided with navigation lights and shapes, pilot ladder, and means of making sound signals and distress signals, in accordance with the provisions of the Regulations and also the International Collision Regulations.

X. That in all other respects the ship complied with the requirements of the Regulations so far as these requirements apply thereto.

This certificate is issued under the authority of the Indian Government.

It will remain in force unless previously cancelled until---

Issued at the day of 19.....

The undersigned declares that he is duly authorized by the Indian Government, to issue this certificate.

.....

(Signature)

Note. - It will be sufficient to indicate the year in which the keel was laid except for 1952 and for 1965, the year of the coming into force for the International Convention for the Safety of Life at Sea, 1960, in which cases the actual date should be given.

In the case of a ship which is converted as provided in Regulation 1(b)(i) of Chapter II, the date on which the work of conversion was begun should be given.

Passenger Ship Safety Certificate

India

For an/a short International Voyage

Issued under the Provisions of the International convention for the safety of life at sea, 1960

Name

of Ship

Distinctive

No. or letters

Port

of Registry

Gross

Tonnage

Particulars

of Voyages if any, sanctioned under Regulation(27)(c)(vi) of Chapter III

Date

on which keel was laid (see note below)

This is to Certify "

I. That the above-mentioned ship has been duly surveyed in accordance with the provisions of the Convention referred to above.

II. That the survey showed that the ship complied with the requirements of the Regulations annexed to the said convention as regards :-

(1)

the structure, main and auxiliary boilers and other pressure vessels and machinery;

(2)

the watertight sub-division arrangements and details :

(3)

the followings sub-divisional loadlines :-

Sub-division load lines assigned and marked on the ship's side

at amidships assigned and marked on the (Regulation II of Chapter

II).

Free board To apply when the spaces in which passenger are carried included the following alternative spaces.

C. 1

C. 2

C. 3

III. That the life-saving appliances provide for a total number ofperson and no more, viz:-

.....life boats (includingmotor lifeboats) capable of accommodating Person, and Motor lifeboats fitted with radiotelegraph installation and searchlight (included in the total lifeboats shown above) and Motor lifeboats fitted with searchlight only (also included in the total lifeboats shown above), requiring certificated lifeboatmen;

.....liferrafts, for which approved launching devices are required, capable of accommodatingpersons; and

.....liferrafts, for which approved launching devices are not required, capable of accommodating..... persons;

.....buoyant apparatus capable of supporting persons;

.....lifebuoys;

.....lifejackets.

IV. That the lifeboats and liferafts were equipped in accordance with the provisions of the Regulations.

V. That the ship was provided with a line-throwing appliance and portable radio apparatus for survival craft in accordance with the provision of the Regulations.

VI. That the ship complied with the requirements of the Regulations as regards radio telegraph installations, viz:-

Requirements

of Regulations

Actual

Provision

Hours of listening

by operator

Number of

operators

Whether auto alarm

fitted

Whether main

installation fitted

Whether reserve

installation fitted

Whether main and

reserve transmitters electrically Separated or combined

Whether direction

finder fitted

Number of

passengers for which certificated

VII. That the functioning of the radiotelegraph installations for motor lifeboats and/or the portable radio apparatus for survival craft, if provided, complied with the provision of the Regulations.

VIII. That the ship complied with the requirement of the Regulations as regards fire-detecting and fire "extinguishing appliances and was provided with navigation lights and shapes, pilot ladder, and means of making sound signals and distress. Signals in accordance with the provisions of the Regulations and also the International Collision Regulations.

IX. That in all other respects the ships complied with the requirements of the Regulations, so far as these requirements apply thereto.

This certificate is issued under the authority of the Indian Government. It will remain in force, unless previously cancelled, until..... Issued at.....the..... day of.....19.....The undersigned declares that he is duly authorized by the said Government to issue this Certificate.

.....

(Signature)

Note. - It will be sufficient to indicate the year in which the keel was laid except for 1952 and the year of the coming into force of the international Convention for the Safety of Life at Sea, 1960, in which cases the actual date should be given.

In the case of a ship which is converted as provided in Regulation 1 (b) (i) of Chapter II of the Convention, the date on which the work of conversion was begun should be given.

Cargo Ship Safety Construction Certificate

The Merchant Shipping (Safety Convention Certificates) Rules, 1968

Issued by the Government of India

Issued under the provision of the International convention for the safety of life at sea, 1960

Name of Ship

Distinctive Number or Letters

Port of Registry

Gross Tonnage

Date on which keel was laid (see note below)

That is to certify-

That the above-mentioned ship has been duly surveyed in accordance with the provisions of Regulation 10 of Chapter I of the Convention referred to above, and that the survey showed that the condition of the hull, machinery and equipment, as defined in the above Regulation was in all respects satisfactory and that the ship complied with the applicable requirements of Chapter II (other than that relating to fire-extinguishing appliances and fire control plans).

This certificate is issued under the authority of the Indian Government. It will remain in force, unless previously cancelled, until.

Issued at the..... day of19.....

The undersigned declares that he is duly authorised by the said Government, to issue this certificate.

Seal

Signature

Note. - It will be sufficient to indicate the year in which the keel was laid except for 1952 and for 1965, the year of the coming into force of the International Convention for the Safety of Life at Sea, 1960, in which cases the actual date should be given.

Cargo Ship Safety Equipment Certificate

Issued by the Government of India

Issued under the provisions of the

International Convention For The Safety Of Life At Sea, 1960

Name of Ship

Distinctive Number or Letters

Port of Registry

Gross Tonnage

Date on which keel was laid (see note below)

That is to certify-

I. That the above mentioned ship has been duly inspected in accordance with the provisions of the Convention referred to above.

II. That the inspection showed that the life-saving appliances provided for a total number of persons and no more, viz.

..... lifeboats on port side capable of accommodating persons;

..... lifeboats on starboard side capable of accommodating persons;

..... motor lifeboats (included in the total lifeboats shown above), including motor lifeboats fitted with radiotelegraph installation and searchlights, and motor lifeboats fitted with searchlight only;

..... liferafts, for which approved launching devices are not required capable of accommodating persons; and

..... liferates for which approved launching devices are not required, capable of accomodatingperson;

..... life buoys;

..... life jackets.

III. That the lifeboats and liferafts were equipped in accordance with the provisions of the Regulations annexed to the Convention.

IV. That the ship was provided with a line-throwing apparatus and portable radio apparatus for survival craft in accordance with the provisions of the Regulations.

V. That the inspection showed that the ship complied with the requirements of the said convention as regards fire-extinguishing appliances and fire control plans and was provided with navigation lights and shapes, pilot ladder, and

means of making sound signals and distress signals in accordance with the provisions of the Regulations and the International Collision Regulations.

VI. That in all other respects the ship complied with the requirements of the Regulations so far as these requirements apply thereto.

This certificate is issued under the authority of the Indian Government. It will remain in force, unless previously cancelled, until.....

Issued atthe day of19.....

The undersigned declares that he is duly authorised by the said Government, to issue this certificate.

Seal

(Signature)

Note. - It will be sufficient to indicate the year in which the keel was laid except for 1952 and the year of the coming into force of the International Convention for the Safety of Life at Sea, 1960, in which cases the actual date should be given.

Cargo Ship Safety Radiotelegraphy Certificate

Issued by the Government of India

Issued under the provisions of the

International Convention For The Safety Of Life At Sea, 1960

Name

of Ship

Distinctive

Number or Letters

Port

of Registry

Gross

Tonnage

Date

on which keel was laid(see note below)

That is to certify-

I. That the above mentioned ship of the Convention referred to above as regards

Radiotelegraphy:

Requirements

of Regulations

Actual

provisions

Hours

of listening by operator

Number

of operators

Whether

auto alarm fitted

Whether

main installation fitted

Whether

reserve installation fitted

Whether

main and reserve transmitters electrically separated or combined.

Whether

direction-finder fitted

II. That the functioning of the radiotelegraphy installations for motor life-boats and/or the portable radio apparatus for survival craft, if provided, complied with the provisions of the said Regulations.

This certificate is issued under the authority of the Indian Government. It will remain in force, unless previously cancelled, until

The Merchant Shipping (Safety Convention Certificates) Rules, 1968

Issued at the day of19.....

The undersigned declares that he is duly authorised by the said Government, to issue this certificate.

Seal

(Signature)

Note. - It will be sufficient to indicate the year in which the keel was laid except for 1952 and for 1965, the year of the coming into force of the International Convention for the Safety of Life at Sea, 1960, in which cases the actual date should be given.

Cargo Ship Safety Radiotelephony Certificate

Issued under the provisions of the

International Convention For The Safety Of Life At Sea, 1960

Name

of Ship

Distinctive

Number or Letters

Port

of Registry

Gross

Tonnage

Date

on which keel was laid (see note below)

That is to certify-

I. That the above mentioned ship the Convention referred to above as regards Radiotelephony :

Requirements

of Regulations

Actual

provisions

Hours of listening

Number of

operators

II. That the functioning of the portable radio apparatus for survival craft, if provided, complies with the provisions of the said Regulations.

This certificate is issued under the authority of the Indian Government. It will remain in force, unless previously cancelled, until

Issued at the day of19.....

The undersigned declares that he is duly authorised by the said Government, to issue this certificate.

Seal

(Signature)

Note. - It will be sufficient to indicate the year in which the keel was laid except for 1952 and for 1965, the year of the coming into force of the International Convention for the Safety of Life at Sea, 1960, in which cases the actual date should be given.

Exemption Certificate

Issued under the provisions of the

International Convention For The Safety Of Life At Sea, 1960

Name

of Ship

Distinctive

Number or Letters

Port

of Registry

Gross

Tonnage

The Merchant Shipping (Safety Convention Certificates) Rules, 1968

THIS IS TO CERTIFY that the above-mentioned ship is, under the authority conferred by Regulation of Chapter of the Regulations annexed to the Convention referred to above, exempted from the requirements of of the Convention on the voyages to

Insert here the conditions, if any, on which the exemption }
certificate is granted.

This certificate is issued under the authority of the Indian Government. It will remain in force, unless previously cancelled, until.....

Issued at the day of19.....

The undersigned declares that he is duly authorised by the said Government, to issue this certificate.

Seal

(Signature)

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